CLASSIFICATION OF VARIOUS PERSONS NOT HERETOFORE REPORTED AS CLASSIFIED.

October 9, 1908.

Prior to February 12, 1908, various places in the executive civil serivce were filled without compliance with the requirements of the civil-service act and rules, because the appointing officers were of the opinion that the terms of an appropriation act or some circumstance implied exception from such requirements. On February 12, 1908, the Attorney-General rendered an opinion holding, in effect, that all places in the executive civil service, except those mentioned in Schedule A of the rules, and except persons employed merely as laborers, and persons whose appointments are subject to confirmation by the Senate, must be filled as a result of open competitive examinations held under the provisions of the law, and that Congress, in the exemption of any position or class of positions from the operation of the civil-service act, must use language indicating clearly and affirmatively its intention that the civil-service rules should not be applied.

Persons whose names are reported to the Civil Service Commission in response to this opinion and who are occupying places whose duties are similar to those of competitive positions may be classified upon approval by the commission, but may be transferred only when, in the opinion of the Civil Service Commission, such transfer is required in the interest of the service, and then only after an appropriate examination by said commission. Vacancies shall be filled in accordance with the civil-service act and rules. If said commission finds that any of these places can not be satisfactorily subjected to competitive tests they may be treated as excepted from examination and their occupants shall not acquire a competitive status.

On February 12, 1908, the Attorney-General rendered an opinion which is briefly described in the above order, and which the commission brought to the attention of the heads of the several departments and offices, asking them to report all positions which had not previously been reported as classified. Among the most important classes of employees reported were those of the Commission to the Five Civilized Tribes, consisting of clerks, stenographers, law clerks, interpreters, watchmen, and messengers, in all 112 employees; persons connected with logging operations of the General Land Office, consisting of superintendents of logging, stenographers, bookkeepers, clerks, and timber scalers; employees of national parks and reservations, consisting of scouts, rangers, animal keepers, foresters, watchmen, supervisors, electricians, plumbers, gardeners, etc.; clerks in the Bureau of Education paid from the general appropriation for education in Alaska; additional farmers in the Indian Service; employees connected with the allotting and irrigation projects in the Indian Service. In the Department of State a law clerk and an assistant law clerk to audit the laws of Congress were reported. In the Treasury Department a transportation clerk in the office of the chief clerk and one plumber were reported. In the division of Revenue-Cutter Service two civilian instructors, one writer, three draftsmen, and one superintendent of construction were reported. The instructors are employed at Arundel Cove, Md., and the other persons in the office of the superintendent of construction and repairs at Baltimore, Md. In the Department of Justice an inspector and overseer in the United States penitentiary at Fort Leavenworth were reported.

ORDERS AFFECTING UNCLASSIFIED LABORERS.

EXTENSION OF LABOR REGISTERS.

August 3, 1908.

Subdivision III, section 3, of the regulations to govern the employment of unskilled laborers in federal offices outside of Washington, D. C., is hereby amended by the addition of the following words: "but eligible registers may be extended for a longer time by direction of the Civil Service Commission, when such action is deemed necessary in the interests of the service."

The amended section will read as follows:

SEC. 3. The period of eligibility shall be one year from the date of entry upon the register; but eligible registers may be extended for a longer time by the direction of the Civil Service Commission, when such action is deemed necessary in the interests of the service.

At various times the question of the advisability of extending labor registers for a longer period than one year had been given consideration by the commission. The conclusion was finally reached that the exigencies of the service, the infrequency of appointments, and the pressure of work on the district secretaries are such at times as to render it desirable and advisable that the commission should have discretionary power to extend a register for a period beyond one year. In cases where such extensions are authorized the post-office addresses of the eligibles will be verified anew and the parties certified for appointment can be required to appear for a new physical examination to insure their being in proper physical condition to perform the duties of the position to which they are appointed.

LABORERS OUTSIDE OF WASHINGTON, D. C.

October 21, 1908.

The regulations governing the employment of unskilled laborers in federal offices outside of Washington, D. C., are hereby amended, viz:

1. By adding a new regulation, to be numbered VI, and to read as follows:

VI.—DEMOTIONS, TRANSFERS, AND EXTENSIONS OF TEMPORARY SERVICE.

Section 1. The Civil Service Commission shall have authority to authorize:

(*a*) The demotion of any person from the classified service to the position of mere unskilled laborer, and the appointment of such person, in consequence of such demotion, upon his passing the required physical examination, to the position of mere unskilled laborer; a statement of duties in every case to be attached to the application of the department for such demotion, showing the duties of the person proposed to be demoted in the old and new position.

(*b*) The transfer of any mere unskilled laborer from any office or bureau to another, provided that such unskilled laborer is in good standing and has had at least six months' experience, and the qualifications in the new position are the same as those in the old.

(*c*) The temporary appointment of a mere unskilled laborer for a period to exceed thirty days in cases of great and evident necessity.

2. By adding to the concluding sentence of section 3, Regulation IV, the words "except as provided in Regulation VI hereof." The amended section will read:

SEC. 3. When a demand for appointment or employment arises which can not be met in the manner provided in section 1, a person whose name is either not on the register or not in turn for certification may be appointed temporarily; but such appointment shall continue only during the continuance, in the judgment of the commission, of the conditions which necessitated it, and no such persons shall be thus employed more than thirty days in any period of twelve months, except as provided in Regulation VI hereof.

These amendments became necessary in order to meet exigencies which have from time to time arisen since the adoption of the labor regulations. It has sometimes been found necessary to demote a person from the classified service to the unskilled laborer service, but heretofore there was no authority in the labor regulations to justify such a step and the regulations were amended accordingly.

The transfer of unskilled laborers from one office to another, while permitted in Washington, D. C., had never been authorized by the labor regulations governing laborers outside of Washington, D. C., and yet such transfers can often be made in the interests of the service.

In a great many cases in the field service it has been found necessary to extend temporary appointments of laborers for a longer period than thirty days,